



Maritime &
Coastguard
Agency

Guidance

MGN 711 (M) The Merchant Shipping (Port State Control) Regulations 2026

Updated 22 July 2026

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Summary

This notice provides information on the Merchant Shipping (Port State Control) Regulations 2025 which implement the Paris Memorandum of Understanding on Port State Control (Paris MoU). The Regulations, in conjunction with the Paris MoU, provide for:

- Inspection of foreign flag seagoing ships and their crews calling at UK ports or anchorages to engage in a ship/port interface;
- Expanded inspections of ships with a high-risk profile after 6 months from the previous inspection in the Paris MoU Region;
- Expanded inspections of oil, gas, or chemical tankers, bulk carriers or passenger ships more than 12 years of age and at intervals according to their risk profile;
- Ships of any type which are repeatedly detained in the Paris MOU region will be refused access to ports and anchorages of member

States. The period of refusal of access increases on each occasion and may result in permanent exclusion on the third or fourth occasion;

- A requirement for port authorities and pilots, including deep sea pilots, to report apparent anomalies which may pose a risk to safety or to the marine environment;
- An obligation on port authorities to provide actual times of arrival and departure of ships calling at their ports or anchorages.

This notice is for guidance only and the Regulations and the Paris MoU should be consulted for full details of the relevant legal obligations.

1. Introduction/background

1.1 The Paris Memorandum of Understanding on Port State Control (Paris MoU) means the administrative agreement for cooperation on Port State Control signed by the maritime authorities of:

Belgium, Bulgaria, Canada, Croatia, Cyprus, Denmark, Estonia, Finland, France, Germany, Greece, Iceland, Ireland, Italy, Latvia, Lithuania, Malta, Montenegro, the Netherlands, Norway, Poland, Portugal, Romania, the Russian Federation (currently suspended), Slovenia, Spain, Sweden and the United Kingdom.

1.2 Paris MoU region is the geographical area in which Paris MoU members carry out Port State control inspections.

1.3 The inspection regime introduced by the Paris MoU places certain duties on the UK Government which are carried out using the powers to inspect ships available in the Merchant Shipping Act 1995 ("the 1995 Act") and also in the regulations implementing the Conventions.

1.4 References in this notice to Annexes and Sections are to Annexes and Sections of the Paris MoU unless stated otherwise. References to a regulation are to a regulation in the Regulations unless stated otherwise.

2. Definitions

2.1 Terms with a particular meaning are capitalised. Definitions of terms used are given in regulation 3 of the Regulations.

3. Application

3.1 Port State Control inspections apply to foreign flagged seagoing ships and their crews calling at UK ports, or anchorages within the jurisdiction of a port, to engage in a ship/port interface (regulation 4). A ship/port interface means that the ship is directly affected by the movement of persons or goods or the provision of port services to or from the ship. Within the jurisdiction of the port is interpreted as the area within port limits which is categorised waters as set out in the latest version of MSN 1837(M) and does not include waters regarded as “sea”.

3.2 Port State inspections in UK ports or anchorages do not apply to:

- British ships (ships registered in the UK or a British Territory) and United Kingdom Government ships;
- fishing vessels;
- Warships;
- naval auxiliaries;
- wooden ships of a primitive build;
- foreign government ships used for non-commercial purposes; and
- pleasure vessels.

3.3 British ships are subject to provisions of the Paris MOU on Port State Control when calling at ports or anchorages of other Member States. They are also subject to provisions of other regional port state control MOU's when calling at ports or anchorages of those regions.

4. Ship Risk Profile

4.1 All ships calling at a port or anchorage in the Paris MoU region are assigned a ship risk profile: i.e. high risk ship (HRS), standard risk ship (SRS), or low risk ship (LRS), which is re-calculated daily. The ship risk profile determines the priority for inspection, intervals between inspections and the type of inspection. The purpose is to ensure that the frequency

and detail of inspections carried out reflects the risk posed by the ship, and reduces the burden of inspection on the low-risk ships.

4.2 Elements of the ship risk profile and their weighting are explained in Annex 7 and include:

- ship type;
- age (keel laying date);
- flag of registry;
- the performance of recognised organisations;
- company performance; and
- the number of deficiencies and detentions recorded within the previous 36 months.

Calculators for deriving ship risk profiles and company performance based on information entered by the user are provided on the Paris MoU website at <http://www.parismou.org> (<http://www.parismou.org/>).

4.3 Tables of flag and recognised organisation performance are published in Paris MoU Annual Reports at <http://www.parismou.org> (<http://www.parismou.org/>) and take effect from 1 July each year.

Reference in the ship risk profile to 'IMO Audit' is to the Mandatory IMO Member State Audit Scheme in IMO Assembly Resolution A.1067 (28). Flags which meet the flag criteria for determining a low risk profile ship (the flag is on the Paris MoU white list and has completed an IMO audit) are identified on <http://www.parismou.org> (<http://www.parismou.org/>).

5. Frequency of Inspections

5.1 Ships with a high, standard or low risk profile will be inspected after 6, 12 or 36 months, respectively, from the previous inspection in the Paris MoU region. Ships with 'overriding factors' described in Annex 8 will be inspected regardless of the period since the last inspection.

5.2 Inspections at the discretion of inspectors may take place before they are due – from 5, 10 or 24 months after the previous inspection in the Paris MoU region for a ship with a high, standard or low risk profile, respectively. A ship with 'unexpected factors' described in Annex 8 may be inspected according to the professional judgement of the inspector.

5.3 The interval to the next inspection restarts after each inspection. Ships other than those described above will not, generally, be selected for inspection.

6. Scope of Inspections

6.1 As detailed in Annex 9 an inspection may be:

- an initial;
- more detailed; or
- expanded inspection.

6.2 All inspections include, at least, the scope of an initial inspection. The inspector will, as a minimum, check relevant certificates and documents listed in Annex 10, confirm that deficiencies outstanding from the previous inspection in the Paris MoU region have been rectified, and look at the overall condition of the ship, including the navigation bridge, the deck, the engine room, accommodation and galley, cargo holds/areas if accessible, steering gear and hygiene on board ship.

6.3 During any Port State Control inspections and resulting further actions, the inspector and MCA will be guided by all technical instructions and circulars issued under the Paris MoU, in their up-to-date versions. A number of these documents are publicly available in the Publications section of the Paris MoU website (<https://parismou.org/publications>). However, it should be noted that not all instructions and circulars are publicly available due to Paris MoU confidentiality policies.

6.4 Where there is evidence for believing, after an initial inspection, that the condition of the ship or its equipment or crew does not substantially meet the relevant standards of a Convention, which in the professional judgement of the inspector warrants further inspection, then a more detailed inspection of the ship, its equipment or crew, including compliance with on board operational requirements will be carried out. Examples of clear grounds for a more detailed inspection are given in Annex 9.

6.5 The following ships are subject to expanded inspections:

- periodic inspection of ships with a high-risk profile;
- periodic inspection of gas, oil or chemical tankers, bulk carriers or passenger ships, over 12 years of age;

- additional inspection of the above ships with overriding or unexpected factors; and
- any ship inspected for the purpose of lifting a refusal of access notice

An expanded inspection will cover the areas listed in Annex 9 and specific items in those areas, subject to their practical feasibility or constraints of safety.

7. Ship to remain in port until an expanded inspection is completed

7.1 Regulation 8(3) requires a ship subject to an expanded inspection to remain in the port or anchorage until an expanded inspection is completed.

8. Detention

8.1 Where an inspection reveals deficiencies which in the professional judgment of the inspector are clearly hazardous to safety, health or the environment, the ship will be detained or the operation revealing such deficiencies will be stopped. The detention notice or stoppage of an operation will not be lifted until the hazard is removed or the MCA has established that the ship can, subject to any necessary conditions, proceed to sea safely and without risk to the safety and health of passengers or crew, to other ships, or without an unreasonable threat of harm to the marine environment (regulation 12)

8.2 In deciding whether or not to detain a ship, inspectors will be guided by the criteria set out in Schedule 3 to the Regulations.

8.3 In the case of accidental damage sustained on the ship's voyage to a port, the ship will not be detained provided that action set out in Schedule 3, paragraph 1(3) has been taken.

8.4 A detention notice may include a direction that the ship will remain in a particular place or move to a particular anchorage or berth. It may also specify circumstances in which the master may move the ship from a specified place for reasons of safety or prevention of pollution.

8.5 A fee in accordance with the Merchant Shipping (Fees) Regulations 2018 will be charged for an inspection which results in detention, any revisit to check that deficiencies have been rectified, and for an expanded inspection requested by the owner in order to lift a refusal of access (regulation 26).

9. Refusal of access to ports and anchorages

9.1 Ships of any type may be refused access to ports and anchorages in the UK and other member States following repeated detentions. The period of refusal of access increases on each occasion and may result in permanent refusal of access on the third or fourth occasion (regulations 15-17). A change of flag or owner after the issue of a refusal of access notice does not affect the terms of the notice.

9.2 A refusal of access is lifted only when conditions in Regulation 17 are met, and in the case of a first refusal of access after a period of 3 months from issue of the notice, or in the case of a second refusal of access after a period of 12 months from issue of the refusal of access notice.

9.3 A detention following a second refusal of access will result in a third refusal of access regardless of the flag at the time of detention or the time that has passed since the second refusal of access. A third refusal of access may be lifted after 24 months if:

- the ship is registered with a flag that is not on the Paris MoU black or grey list,
- statutory and classification certificates are issued by organisations recognised by one or more Paris MoU member states.
- the company has a high performance based on its ships' deficiency and detention rates in the Paris MoU Region, as described in Annex 7 Paris MoU (for a company performance calculator see <http://parismou.org> (<http://parismou.org>)), and
- the conditions in PSCC Instruction 53/2020/06 have been met.

9.4 Ship owners wishing to have a third refusal of access lifted should consider initiating the process at least 3 months before the 24-month period closes, in order to ensure that it is completed within this period. If the criteria are not met after a period of 24 months from issue of notice, the ship is permanently refused access to ports and anchorages in the Paris MOU Region.

9.5 A detention subsequent to a third refusal of access will result in permanent exclusion from ports and anchorages of member states [in the Paris MoU Region] regardless of the flag of registry or the time that has passed since the third refusal of access.

9.6 Access to a specific port or anchorage may be permitted in the event of force majeure or overriding safety considerations, or to reduce the risk of pollution or to have deficiencies rectified, provided that adequate measures to the satisfaction of the Secretary of State have been implemented by the owner or master to ensure safe entry (Regulation 18).

10. Rights of appeal

10.1 The ship owner or master has rights of appeal and compensation against decisions on detention and decisions on refusal of access (Regulations 19-21). These place the onus of proof in any claim for loss or damage suffered on the owner/the master of the ship. The master of a ship issued with a detention or refusal of access notice will be informed of the appeal procedure, the time limits for appeal and the practical arrangements for doing so.

11. Follow up to inspections and detentions

11.1 On completion of an inspection, the inspector will provide the master with a copy of the inspection report as specified in regulation 10, which should be retained on board ship for three years.

11.2 When a ship is detained, the MCA will immediately inform the relevant Flag Administration in writing, including a report of inspection, of the circumstances of detention. Recognised Organisations responsible for the issue of classification or statutory certificates will also be notified where appropriate.

11.3 Where detainable deficiencies described in 8.1 above cannot be rectified in the port of inspection the MCA may allow the ship to proceed to the nearest appropriate repair yard where follow up action can be taken, subject to conditions which ensure that the ship can proceed safely and without unreasonable risk to the marine environment (regulation 13). In

the case of structural deficiencies, thickness measurements may be required before the ship is allowed to sail.

12. Ships detained or released to repair yard

12.1 Where a ship with deficiencies described in 8.1 above fails to comply with the conditions imposed or, if it is allowed to sail to a repair yard, fails to call at the specified repair yard or to effect the required repairs, the ship is not permitted to enter any port or anchorage in the Paris MoU Region of a member State until the owner has provided evidence to satisfy the detaining authority that the ship fully complies with all the conditions relating to deficiencies identified by an inspector and all the applicable requirements of the Conventions (regulation 14). Access may be provided in circumstances of force majeure, overriding safety considerations, the need to reduce the risk of pollution, or the need to have deficiencies rectified. (Regulation 18).

13. Complaints

13.1 The MCA will assess all complaints from persons or organisations with a legitimate interest in the safety of the ship and its crew to determine whether the complaint is justified (regulation 25).

13.2 Complaints may be submitted via the MCA's general enquiry Infoline service infoline@mca.gov.uk.

13.3 Where the complaint is considered justified, the MCA will ensure that anyone directly concerned by that complaint can make their views known. The confidentiality of crew members during interviews will be ensured, and the identity of the complainant will not be revealed to the shipowner or master. An inspection may be carried out by an inspector to assist in the determination of the matter. The complainant will be notified of any follow up action taken, or where it is determined that the complaint is not justified, the reasons for reaching that conclusion. The Flag State, and, if appropriate, the International Labour Organization will be informed of the complaints and any action taken.

14. Reports from pilots on apparent anomalies

14.1 UK pilots engaged in berthing or unberthing a ship, or engaged on a ship bound for a port in the UK or in transit within UK waters must immediately inform the port authority authorising them, or the MCA, or the authority of another coastal member State, as appropriate, whenever they learn in the course of their normal duties that there are apparent anomalies which may prejudice the safe navigation of the ship or which may pose a threat of harm to the marine environment. For these purposes a UK pilot means a pilot authorised under the Pilotage Act 1987 or a pilot boarding a ship in UK waters (regulation 23).

14.2 The information should be transferred electronically whenever possible and include:

- ship name, IMO number, call sign and flag
- last port of call and port of destination
- a description of the apparent anomalies found on board ship.

14.3 MCA Marine Office telephone and email addresses are found at Office access and opening times - Maritime and Coastguard Agency - GOV.UK (www.gov.uk) (<https://www.gov.uk/government/organisations/maritime-and-coastguard-agency/about/access-and-opening>) . Alternatively pilots may email PSC@mcga.gov.uk, or HQ_inspectionops@mcga.gov.uk or if outside working hours contact the 24 hour Infoline by phone on +44 (0)2038172000 or email to infoline@mcga.gov.uk

14.4 The MCA will maintain the confidentiality of the source of reports received from pilots in so far as the law allows.

15. Reports from port authorities on ships with apparent anomalies

15.1 Port authorities which in the course of their normal duties learn that a ship within their port has apparent anomalies which may prejudice the safety of the ship, or which poses an unreasonable threat of harm to the marine environment must immediately inform the MCA (regulation 23).

Reports received from pilots referred to in 14.1 above should also be forwarded to the MCA.

15.2 The information should be transferred electronically whenever possible and include:- ship name, IMO number, call sign and flag, the last port of call and port of destination and a description of apparent anomalies found on board ship.

15.3 The port authority may inform an MCA surveyor through locally agreed channels or the MCA Marine Office. MCA telephone and email addresses are found at Office access and opening times - Maritime and Coastguard Agency - GOV.UK (www.gov.uk) (<https://www.gov.uk/government/organisations/maritime-and-coastguard-agency/about/access-and-opening>) Alternatively, reports may be sent to PSC@mcga.gov.uk or HQ_inspectionops@mcga.gov.uk or if outside working hours to the 24 hour Infoline by phone on +44 (0)2038172000 or email to infoline@mcga.gov.uk

16. Reports from port authorities on actual times of ship arrival and departure

16.1 Port authorities are required to provide details of actual times of arrival and actual times of departure of foreign flag ships calling at UK ports and anchorages, within a reasonable time (regulation 24). The MCA interprets a 'reasonable time' for reporting as within 72 hours of the event.

16.2 For ships calling at an anchorage within the jurisdiction of the port to engage in a ship/port interface, without calling at a berth, the port authority should provide the times of arrival at and departure from the anchorage; for ships calling at a berth, via an anchorage or not, the times of arrival and departure from the berth.

16.3 Information on actual times of port calls should be entered in the MCA data exchange system CERS 3 (Consolidated European Reporting System) by one or more of the means currently used to transfer 24-hour notice of expected ship arrival and departure under Directive 2002/59/EC:

- system to system transfer (the port authority system downloads information directly into CERS)
- online input via a web interface (port authority personnel input data into a CERS web portal using a secure username and password)

- a service provider (input is delegated to a third party using either of the above means).

16.4 Information on actual times of ship calls entered in CERS 3 are transferred into the Paris MOU THETIS system to assist inspection activities.

More information

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Please note that all addresses and telephone numbers are correct at time of publishing.



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